BY ORDER OF THE SECRETARY OF THE AIR FORCE

DEPARTMENT OF THE AIR FORCE INSTRUCTION 34-107

5 JULY 2023

39TH AIR BASE WING Supplement

12 DECEMBER 2024

Services

ALCOHOLIC BEVERAGE PROGRAM

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

ACCESSIBILITY: Publications and forms are available on the e-Publishing website at www.e-Publishing.af.mil

RELEASABILITY: There are no releasability restrictions on this publication

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OPR: AF/A1SO

Certified by: SAF/MR

Supersedes: DAFI34-219, 31 March 2022

Pages: 25

(39ABW)

OPR: 39FSS/FSW

Certified by: 39ABW/CC (Lt Col Jack B. Carroll)

Pages: 25

This publication implements Department of the Air Force Policy Directive (DAFPD) 34-1, *Air Force Services*, specifically those requirements addressed by Department of Defense Instruction (DoDI) 1015.10, *Military Morale, Welfare, and Recreation (MWR) Programs*, Enclosure 9. This publication provides guidance on Department of the Air Force (DAF) policy for procuring, controlling, selling, and consuming alcoholic beverages. It has been developed in collaboration with the Deputy Chief of Staff for Manpower, Personnel and Services (AF/A1), the Deputy Chief of Space Operations for Human Capital (SF/S1), the Chief of the Air Force Reserve (AF/RE), and the Director of the Air National Guard (NGB/CF). This publication applies to Department of the Air Force civilian employees and uniformed members of the United States Space Force, the Regular Air Force, the Air Force Reserve, the Air National Guard, and those with a contractual obligation to abide by DAF issuances. Failure to obey paragraphs **3.1.6** and **3.1.8** constitutes a violation of Article 92(I), Uniform Code of Military Justice (UCMJ)—failure to obey lawful order or regulation. Article 92(I) of the UCMJ does not apply to members of the Air National Guard (ANG) while in Title 32 status (that is, activated for state duty under state command), but ANG members may be subject to an equivalent article under a state military justice code. Refer

recommended changes and questions about this publication to the office of primary responsibility (OPR) using the DAF Form 847, *Recommendation for Change of Publication*; route DAF Forms 847 from the field through the appropriate functional chain of command. This publication may be supplemented at any level, but all supplements that directly implement this publication must be routed to the OPR for coordination, and all major command and field command level supplements must be approved by the Human Resource Management Strategic Board prior to certification and approval. The authorities to waive wing, unit or delta level requirements in this publication are identified with a Tier ("T-0, T-1, T-2, T-3") number following the compliance statement. See Department of the Air Force Manual (DAFMAN) 90-161, *Publishing Processes and Procedures*, Table A10.1 for a description of the authorities associated with the Tier numbers. Submit requests for waivers through the chain of command to the appropriate Tier waiver approval authority, or alternately, to the requestor's commander for non-tiered compliance items. Ensure all records generated as a result of processes prescribed in this publication adhere to Air Force Instruction 33-322, *Records Management and Information Governance Program*, and are disposed in accordance with the Air Force Records Disposition Schedule, which is located in the Air Force Records Information Management System.

(39ABW) This supplement implements and extends the guidance in AFI 34-107, *Alcoholic Beverage Program*, 5 July 2023. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using AF Form 847, Recommendation for Change of Publication. Route AF Form 847s from the field through the appropriate functional chain of command. Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with Air Force Manual (AFMAN) 33-363, Management of Records, and disposed of in accordance with the Air Force Records Information Management System (AFRIMS) Disposition Schedule (RDS). The authorities to waive wing/unit level requirements in this publication are identified with a Tier ("T-0, T-1, T-2, T-3") number following the compliance statement. See AFI 33-360, *Publications and Forms Management*, **Table 1.1** for a description of the authorities associated with the Tier numbers. Submit requests for waivers through the chain of command to the appropriate Tier waiver approval authority, or alternately, to the Publication OPR for non-tiered compliance items.

SUMMARY OF CHANGES

This document has been changed and should be reviewed. This publication now implements DAFPD 34-1 and has been renumbered to correspond to the DAFPD. Additionally, there are several administrative changes.

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Chapter 1

PROGRAM OVERVIEW

1.1. Intent. This instruction provides guidance for all personnel that procure, sell, serve, or consume alcoholic beverages on DAF installations or aircraft. It empowers commanders with the authority to permit the consumption of alcoholic beverages by Airmen and Guardians (Regular Air Force, Space Force, Air Reserve Component, Department of Defense (DoD) civilians, and DoD contractors) and adult guests on a limited basis.

1.2. Program Guidance. Commanders shall establish internal programs, policies, and procedures consistent with DoDI 1010.04, *Problematic Substance Use by DoD Personnel*, to deglamorize the use of alcohol, to discourage and treat its irresponsible use, and to offer alternative leisure time activities. **(T-0)**.

1.3. Culture. It is the objective of this instruction to ensure bystander Airmen and Guardians are not negatively affected by alcohol consumption and the unit does not become vulnerable to an unprofessional or hostile work environment. Commanders of all units will ensure that Airmen and Guardians never feel expressed or implied pressure to consume alcohol and that non-alcoholic beverage options are available at all official social functions. **(T-3)**. Moreover, commanders will ensure their team possesses a culture of professionalism during the performance of official duties. **(T-3)**.

Chapter 2

ROLES AND RESPONSIBILITIES

2.1. Headquarters Air Force Director of Services (AF/A1S). Prepares policies for approval and develops guidance on controlling, selling, procuring, and consuming alcoholic beverages.

2.2. Major Command and Field Command Commanders. Enforce this instruction through their support staff.

2.3. The Army and Air Force Exchange Services (AAFES). Oversees all Class Six packaged beverage operations on DAF installations in accordance with Air Force Instruction AFI 34-203(I), *Board of Directors, Army and Air Force Exchange Service (AAFES).* Additionally, AAFES provides wholesale alcoholic beverages to authorized Force Support programs.

2.4. Defense Commissary Agency (DeCA). Oversees the sale of beer and wine within their stores.

2.5. Air Force Services Center (AFSVC). Provides procedural guidance for controlling, selling, procuring, and using alcoholic beverages.

2.6. Installation Commanders. Oversee installation alcoholic beverage programs and enforce this instruction. In accordance with AFI 1-2, *Commander's Responsibilities,* and this instruction, commanders are responsible for ensuring healthy and professional work environments. Installation commanders:

2.6.1. Are encouraged to work with installation stakeholders (e.g., AAFES, Force Support and DeCA) and community partners, to include state and local governments, businesses that are geographically proximate to the DAF installation or that target military members, local Chambers of Commerce, and local civic organizations on responsible alcohol sales and service practices and bystander intervention training for alcohol servers at establishments frequented by Airmen and Guardians.

2.6.2. May supplement this instruction accounting for the installation's mission, Airmen and Guardian morale, areas where alcohol is served, deglamorization and additional guidance ensuring consumption of alcohol will not negatively impact the installation's mission.

2.6.3. Ensure the Force Support commander or director holds annual training programs to familiarize beverage supervisors and servers with DAF alcohol policies. Refer to **paragraph 3.5**.

2.6.4. Ensures implementation of the DAF alcohol deglamorization program. Refer to **paragraph 3.7**.

2.7. The Vice President of the AAFES Region Along with the AFSVC Commander. Shall settle disputes between the installation commander and AAFES. See AFI 34-211(I), *Army and Air Force Exchange Service Operations.*

2.8. Installation Violence Prevention Integrators (VPI). Will assist with facilitation of bystander intervention training. Refer to **paragraph 3.5**.

2.9. Squadron or Unit Commanders and the Appropriate Concerned Leadership Team. Remain primarily responsible for the safety of all Airmen and Guardians and their adult guests who attend squadron or unit events where alcoholic beverages are served. Moreover, Airmen, Guardians, and adult guests are expected to conduct themselves in a manner that exercises proper decorum at all times during squadron or unit functions, especially while consuming alcoholic beverages on the installation.

Chapter 3

REQUIREMENTS OF THE ALCOHOLIC BEVERAGE PROGRAM

3.1. General Requirements.

3.1.1. Alcohol must only be consumed in government facilities at approved times and locations, ensuring mission and unit readiness are not negatively affected. **(T-3)**. Refer to **paragraph 4.2**. Alcohol will not be consumed by individuals in the performance of official duties, except when attending, or speaking at, a social gathering as part of official duties. **(T-3)**.

3.1.2. Alcohol consumption within squadron or unit government facilities is permitted for Airmen, Guardians, and their adult guests during commander approved holidays, receptions, celebrations, or social events. The allowable drinking age for adult guests cannot be lower than 21 years of age within the United States. Alcohol consumption at periodic or recurring command social functions should not become a routine or expectation. Refer to paragraphs **4.3 - 4.5**.

3.1.3. Group and other equivalent commanders may authorize the consumption of alcohol by military members, civilian employees, nonappropriated fund employees, (and their adult guests) to commemorate the successful completion of significant exercises, operations, flights, inspections, and other command milestones, as a means of fostering esprit de corps. The allowable drinking age for adult guests cannot be lower than 21 years of age within the United States. Permanent squadron or unit alcoholic beverage service bars will not be established except in heritage rooms that are accessed only by unit members, their families and invited guests for occasional unit related and/or morale building events. **(T-3)**. Consideration should be given to separating (e.g., by time, location and announcement) official mission debriefs from such celebratory or informal discussion events, where appropriate. Alcoholic consumption at the conclusion of normal unit day-to-day operations should not become an expectation.

3.1.4. Consuming alcohol in government facilities under the aforementioned guidelines is a privilege and all personnel should do so responsibly in every situation. Commanders must always ensure a safe and professional environment for all Airmen and Guardians.

3.1.5. Commanders will ensure the minimum age for purchasing, serving, selling, possessing, or drinking alcoholic beverages on DAF installations is defined by Federal law and/or provisions of the state, territory, possession, or foreign country in which the installation is located. **(T-0)**.

3.1.5. **(39ABW)** The minimum age for purchasing, serving, selling, possessing, or drinking alcoholic beverages on Incirlik Air Base or at the Geographically Separated Units, to include military, dependents and civilians, is 18 years of age.

3.1.6. The sale of powdered alcohol is prohibited on DAF installations. **(T-1)**. Airmen and Guardians under the prescribed legal age (by the law of the state, territory, possession, or foreign country) for consumption of alcoholic beverages are likewise prohibited from consumption (inhaling, ingesting or inoculation) of powdered alcohol, whether mixed into liquid form or still in a powdered state. **(T-0)**. Underage Airmen and Guardians will not

possess, sell, consume, or distribute powdered alcohol. **(T-3)**. Failure to obey this paragraph constitutes a violation of Article 92(I), UCMJ—failure to obey lawful order or regulation. Article 92(I) of the UCMJ does not apply to members of the ANG while in Title 32 status (that is, activated for state duty under state command), but ANG members may be subject to an equivalent article under a state military justice code.

3.1.7. Servers and sellers, including volunteers and personnel at squadron events, of alcoholic beverages must verify the purchaser's age with a government-issued photo identification card (e.g., common access card, driver's license, passport, or family identification and privilege card). **(T-0)**.

3.1.8. Adults must not provide alcoholic beverages to minors except in accordance with applicable state or host nation laws. **(T-0**). Failure to obey this paragraph constitutes a violation of Article 92(I), UCMJ—failure to obey lawful order or regulation. Article 92(I) of the UCMJ does not apply to members of the ANG while in Title 32 status (that is, activated for state duty under state command), but ANG members may be subject to an equivalent article under a state military justice code.

3.1.9. Military personnel 18 years old or older may purchase, serve, sell, possess, and consume alcoholic beverages outside the United States, its territories, and possessions unless a higher drinking-age requirement exists in accordance with applicable status of forces or country-to-country agreements. A higher drinking age requirement (up to 21 years) may also be imposed based on the local situation as determined by the installation commander. Coordination with host nation commander is required. **(T-0)**. Establishment of a drinking age over the age of 21 years requires AFSVC commander's concurrence.

3.1.10. Current United States drinking age is 21 years; however, if states enact new drinking-age laws, installation commanders must make corresponding changes for installation drinking-age guidance. **(T-0)**.

3.1.11. The DAF, consistent with mission needs, will cooperate with federal, state, and local officials in the execution of the alcoholic beverage program; however, there is no legal obligation to submit to state or local control or regulation. **(T-0)**.

3.1.12. Force Support, AAFES managers, and commanders at all levels should ensure proper safeguards and controls are established to protect the welfare of an intoxicated person.

3.1.13. Force Support managers selling or serving alcohol must implement an annual training program to familiarize beverage supervisors and servers with DAF alcohol consumption policies. **(T-0)**. The training must cover the principles of Dram Shop liability, bystander intervention methods for identifying intoxicated patrons, and procedures to prevent individuals from driving or engaging in high-risk behavior under the influence of alcohol. Completion of training must be documented in the employee's official personnel file. **(T-3)**. DAF employees working in AAFES facilities also receive training on "Techniques for Alcohol Management" which is documented in the employee's official personnel file.

3.1.14. Underage Drinking. Airmen and Guardians under the prescribed legal age (by the law of the state, territory, possession, or foreign country) for consumption of alcoholic beverages are prohibited from consuming alcoholic beverages.

3.2. Program Exceptions.

3.2.1. The installation commander, with legal review from AFIMSC/JA Services Law Division, 2261 Hughes Avenue, Joint Base San Antonio-Lackland, Texas 78236-9854 (**afsva.cc.distro@us.af.mil**), may approve exceptions to standard guidance if state and federal law permit. For example, when an entire unit marks a unique or non-routine military occasion on a military installation, the minimum drinking age for attendees at a particular unit gathering may be lowered. The minimum drinking age for the entire unit during unique or non-routine military occasions must be 18 or above. **(T-0)**. The minimum drinking age for non-service members at events within the United States may not be lower than 21 years of age.

3.2.2. The installation commander may not delegate the approval authority for exceptions to the minimum drinking age.

3.2.3. The installation commander may approve exceptions to the installation alcohol policy for any combination of beverages, including the following common groupings (each approval document must specifically state the alcoholic beverages that the exception covers):

3.2.3.1. Beer only.

3.2.3.2. Low-alcoholic beverages with less than seven percent alcoholic content by volume.

3.2.3.3. Beer and wine only.

3.2.3.4. Beer, wine, and distilled spirits.

3.2.4. The installation commander shall reevaluate the exceptions annually and send an information copy of the continued exceptions to AFSVC commander. **(T-2)**.

3.3. Dram Shop Liability. Dram Shop is a legal theory of liability in many states, which imposes financial liability upon the owner, operator and/or employees of any establishment for serving alcoholic beverages to persons who cause injuries or damages because of their intoxication. When an establishment continues to serve alcoholic beverages to a customer who has reached or appears to be reaching the point of intoxication and the customer subsequently departs and causes harm to themselves or others, the owner, operator and/or employees of the establishment may be held liable for damages. To protect the assets and interests of nonappropriated fund instrumentalities and the DAF, personnel must adhere to the following:

3.3.1. Employees are prohibited from serving alcoholic beverages to individuals who appear intoxicated or close to being intoxicated.

3.3.2. Servers of alcoholic beverages on DAF installations must record their understanding of Dram Shop policy in the employee's official personnel file by signing underneath this statement: "I understand my responsibility under the Dram Shop theory of liability not to sell or serve alcoholic beverages to persons who appear to be intoxicated or nearing intoxication and not in complete control of their faculties." **(T-3)**. AAFES prescribes the statement to be signed by all AAFES employees. Volunteers serving alcoholic beverages must also have Dram Shop awareness training and sign a statement identical to that signed by employees. **(T-3)**.

3.4. Drunk and Drugged Driving Program. In accordance with DoDI 1330.21, *Armed Services Exchange Regulations*, paragraph E5.2., AAFES managers and DeCA managers shall be familiar with the spirit and intent of all DAF initiatives to eliminate drunk or drugged driving incidents involving patrons of installation Force Support, AAFES, and DeCA establishments, and support Force Support squadron initiatives accordingly. **(T-0)**.

3.5. Bystander Intervention Training. The Force Support commander or director will ensure all Force Support personnel who serve alcohol receive bystander intervention training within 90 days of employment. Installation VPIs will assist in facilitation of bystander intervention training. **(T-3)**. Refer to Department of the Air Force Instruction (DAFI) 90-5001, *Integrated Resilience.* Volunteers serving alcohol at Force Support events approved by the installation commander, either on or off the installation, must receive bystander intervention training prior to the event. **(T-3)**.

3.6. Alcohol Operation Instructions. Operating instructions for activities serving alcoholic beverages must be used. **(T-3)**. Operating Instructions should cover the following:

3.6.1. Importance of curtailing alcohol or drug influenced incidents.

3.6.2. Principles of Dram Shop liability drunk and drugged driving program.

3.6.3. Importance of encouraging patrons to use a designated driver or buddy system.

3.6.4. The provisions of the alcohol deglamorization program.

3.7. Alcohol Deglamorization. Installation commanders, tenant unit commanders, AAFES, DeCA, and Force Support commanders or civilian leaders and managers at all levels must make every effort to deglamorize the use of alcohol and to discourage and treat its irresponsible use. **(T-0)**. Refer to DoDI 1330.21, paragraph E5.2.

3.7.1. To deglamorize alcohol, installation commanders, Force Support commanders or civilian leaders, AAFES and DeCA will ensure:

3.7.1. **(39ABW)** The 39 FSS/CC and AAFES General Manager will coordinate the sale hours for alcoholic beverages and establish the hours in writing.

3.7.1.1. The hours during which alcoholic beverages (dispensed and pre-packaged) are sold by the drink on the installation is established in writing. **(T-3)**.

3.7.1.2. The hours of operation for alcoholic beverage sales are coordinated between Force Support, AAFES and DeCA to provide reasonable service, meet local conditions and recognize the unique mission of military personnel. **(T-3)**.

3.7.1.3. Ensure there is no issuance of coupons for reduced prices for alcoholic beverages. **(T-3)**.

3.7.1.4. Ensure alcoholic beverages are not provided free of charge except for promotional tasting as approved by the installation commander. **(T-3)**.

3.7.2. To deglamorize alcohol, installation commanders, tenant commanders or equivalents, and managers at all levels will ensure:

3.7.2.1. Unit events and unit-affiliated social events where alcoholic beverages are consumed do not promote excessive drinking. **(T-3)**.

3.7.2.2. Unit events and unit-affiliated social events where alcoholic beverages are consumed, also offer nonalcoholic beverages. **(T-3)**.

3.7.2.3. Units have conducted and documented Sexual Assault Prevention and Response (SAPR) training and education for service members and DoD civilian employees on an annual basis. Refer to DoDI 6495.02 Vol 1, *Sexual Assault Prevention and Response (SAPR): Program Procedures*, Enclosure 10 and DAFI 90-6001, *Sexual Assault Prevention and Response (SAPR) Program,* section 7.3. **(T-3)**.

3.7.2.4. Prior to holding unit events or unit-affiliated social events where alcoholic beverages will be consumed, a safe transportation plan is provided by the unit commander and in place for the event. **(T-3)**. Pursuant to **paragraph 3.2.1**, members allowed to consume alcohol at an age between 18-21 years of age are not allowed to drive off the installation while under any possible influence of alcohol.

3.8. Social Hours. The following social hour guidance applies at all DAF installations. Social hour is a designated period in which alcoholic beverages are offered at reduced prices. All Force Support programs and AAFES stores must observe the following procedures when offering alcoholic beverages, by the drink, at reduced prices for social hours: (**T-3**).

3.8.1. Keep designated social hour periods to 10 hours or fewer per week and no more than two hours per day.

3.8.2. Make food available for purchase during social hour periods.

3.8.3. Reduce prices no more than 50 percent except for beverages offered as complimentary with a meal.

3.8.4. Do not serve two-for-one (or higher ratios) drinks.

3.8.5. The installation commander may provide waivers for social hour frequency, and hours on a case-by-case basis; the waiver authority cannot be delegated.

3.9. Bar Operations. When operating establishments primarily focused on the service and consumption of alcoholic beverages (e.g., bars, lounges) Force Support programs will:

3.9.1. Not operate pro rata bars that require non-drinkers to share the cost of alcoholic beverages unless a “pay-as-you-go” bar is not practical or all the members of a group volunteer to share the cost. **(T-3)**.

3.9.2. Not include the cost of alcoholic beverages in a package price for a meal, party or other function (includes dining-in or out) without offering a comparable nonalcoholic option at the same or reduced prices. **(T-3)**.

3.9.3. Not use terms that glamorize alcoholic beverages or their consumption (e.g., "sick calls," "attitude adjustment hours,"). **(T-3)**.

3.9.4. Not use the term “happy hour.” Use the term "social hour" in all written advertisements and provide a range of programs that include more than just reduced prices on alcoholic beverages. **(T-3)**.

3.9.5. Reduce prices for nonalcoholic beverages when reducing prices for alcoholic beverages. **(T-3)**.

3.9.6. Make a complimentary alcoholic beverage part of a meal only in appropriate cases (for example, with birthday or anniversary meal programs). In all cases, make nonalcoholic beverages available as an optional complimentary drink. **(T-3)**.

3.9.7. Prohibit drinking contests. Do not use "last call" or other countdown events designed to promote last-minute sales. **(T-3)**.

3.9.8. Do not increase the alcoholic content of a drink beyond the standard bar recipe without increasing the price. **(T-3)**. (e.g., if the standard bar recipe requires a single shot of alcohol, do not pour a double shot without increasing the price.)

3.9.9. Complimentary nonalcoholic beverages should be offered in association with a designated driver program.

3.9.10. Establish a standard shot size not to exceed 1.5 ounces.

3.10. Registration and Taxation. Force Support programs that buy and sell alcoholic beverages must observe federal regulations. **(T-0)**. Information and forms may be obtained for wholesale or retail alcoholic beverage permits and tax stamps from the Department of the Treasury, Internal Revenue Service, Bureau of Alcohol, Tobacco, Firearms and Explosives.

3.10.1. In the United States, a Force Support program cannot transfer alcoholic beverages to another Force Support program for reimbursement unless the transferring Force Support program has a Federal Liquor Wholesaler's Occupation Tax Stamp issued by the Bureau of Alcohol, Tobacco, Firearms and Explosives. **(T-0)**.

3.10.2. A Force Support program that transfers alcoholic beverages to another Force Support program on a reimbursable basis must post a sign that can be seen from outside the building that reads "Wholesale Liquor Distributor." **(T-0)**.

3.10.3. In the United States, each Force Support program that sells retail alcoholic beverages must be registered with the Alcohol and Tobacco Tax and Trade Bureau. **(T-0)**. AFSVC maintains a central registration for each Force Support Program. Only one registration is needed regardless of how many annexes or retail outlets the Force Support program operates on the installation. However, a Force Support program operating retail outlets at a geographically separated off-installation location (for instance, at an off-installation recreation area) must have a separate registration for each off-installation outlet. **(T-0)**.

3.10.4. A Force Support program that holds a valid federal wholesaler's occupation tax stamp does not need a federal retail occupation tax stamp.

3.10.5. The Force Support program must provide Bureau of Alcohol, Tobacco, Firearms and Explosive officers with purchase orders, invoices, stock record cards, inventories, and other related documents upon request. **(T-0)**.

3.10.6. If a Force Support program contracts with a concessionaire to sell alcoholic beverages at Force Support events, the concessionaire operator is required to purchase, at no cost to the government, a Federal Liquor Wholesaler's or Retailer’s Occupation Tax Stamp issued by the Bureau of Alcohol, Tobacco, Firearms and Explosives. **(T-0)**.

3.10.7. Force Support programs are exempt from all non-federal regulations and direct state and local taxes. If a state or local government attempts to tax or regulate alcohol purchases or sales by a non-AAFES nonappropriated fund instrumentality, contact AFIMSC/JA Services Law Division, 2261 Hughes Avenue, Joint Base San Antonio-Lackland, Texas 78236-9854 (**afsva.cc.distro@us.af.mil**), for assistance in resolving the matter with the state or local authorities. AAFES may also request the assistance of the Commander, AAFES, P.O. Box 660202, Dallas Texas 75266 to resolve any attempt to tax or regulate an AAFES activity.

3.11. Breath Analyzers. Breath analyzers are devices for estimating blood alcohol content from a breath sample. The use of any type of breath analyzers in Force Support programs where alcohol is served or sold is prohibited. **(T-3)**.

Chapter 4

SERVING OR SELLING ALCOHOLIC BEVERAGES FOR ON-PREMISES CONSUMPTION

4.1. Governing Criteria. Force Support programs are the primary providers of alcoholic beverages for on-premises consumption. No other installation organization or non-federal entity is permitted to sell alcoholic beverages unless contracted through Force Support. The installation commander determines in writing which Force Support programs, AAFES, and DeCA facilities and locations sell alcoholic beverages to authorized adults by the drink or in single-serving containers. **(T-3)**. Force Support programs may also contract with concessionaires to sell alcoholic beverages at Force Support events.

4.1.1. The DAF prohibits alcoholic beverages in any youth program building and outdoor area, or at any function sponsored by or for the youth program. Refer to AFI 34-144, *Child and Youth Programs*.

4.1.2. Sale of alcoholic beverages, in person during front desk or sundry store hours, for on-premises consumption in all lodging facilities is authorized. If lodging does not provide this service, another Force Support program may do so. Lodging staff must have documented Dram Shop and bystander intervention training for all staff selling and/or serving alcoholic beverages. Refer to paragraph **3.3.2**, and **3.5**. Lodging must not operate bars **(T-3)**. Lodging may sell the following kinds of packaged alcohol:

4.1.2.1. Distilled spirit miniatures (or, if not available, 200 milliliter sizes).

4.1.2.2. Wine coolers and other premixed, commercially packaged alcoholic beverages with less than seven percent alcoholic content by volume (not to exceed 375 milliliters).

4.1.2.3. Wine (no larger than 1-liter containers).

4.1.2.4. Beer (by the bottle or can).

4.1.3. AAFES may sell beer, wine and premixed commercial drinks with less than seven percent alcoholic content by volume for on-premises consumption.

4.1.4. DAF medical and religious facilities may dispense alcoholic beverages in accomplishing their mission.

4.1.5. AAFES operated name brand fast-food outlets may not regularly sell alcoholic beverages. **Exception:** The installation commander may allow:

4.1.5.1. AAFES operated name brand fast-food outlets to sell beer, wine coolers and premixed commercially packaged alcoholic beverages with less than seven percent alcohol content by volume if the chain offers the same products in the local community.

4.1.5.2. AAFES operated full-service restaurants to sell wine and beer by the glass with meals.

4.1.6. AAFES facilities not explicitly authorized to sell alcoholic beverages in this chapter may request a waiver from the Air Force Director of Services, with concurrence of the installation commander and the AAFES Regional Manager. The request should explain how permitting the facility to sell alcoholic drinks is beneficial to both consumers and the DAF.

4.1.7. Installation restaurants and other facilities supported by a civilian welfare fund may sell the following kinds of drinks for on-premises consumption when approved by the installation commander:

4.1.7.1. Beer (by single serving size).

4.1.7.2. Wine coolers (by single serving size).

4.1.7.3. Premixed, commercially packaged alcoholic beverages with less than seven percent alcoholic content by volume.

4.1.7.4. Wine and beer by the glass with meals.

4.2. Alcoholic Beverage Consumption Locations. Alcoholic beverages may be consumed in installation areas as designated in writing by the installation commander. Approval authority must not be delegated. **Exception:** In the absence of the commander, the authority may be delegated to the vice installation commander.

4.2.1. **(Added-39ABW)** The following areas are authorized for consumption during normal operating or event hours as specified:

4.2.1.1. **(Added-39ABW)** Arkadas Park Areas, Athletic Fields, Golf Course, Base Pool, Picnic Areas, Community Center, Base Theater, Bowling Center, Club Complex, and Lodging Common Areas during normal operating hours.

4.2.1.2. **(Added-39ABW)** Fitness Center during events approved by the 39 MSG/CC.

4.2.1.3. **(Added-39ABW)** Military Family Housing, Airmen Dormitory and Common Areas, and inside Lodging Rooms anytime except as determined by AFSC duty restrictions or in support of operations as directed by Squadron or Group Commanders.

4.2.1.4. **(Added-39ABW)** Consuming alcoholic beverages or carrying them in open containers inside vehicles or while using any wheeled transportation is prohibited. Possessing open containers of alcohol is prohibited except in areas authorized in **paragraph 4.2.1**.

4.3. Alcoholic Beverage Consumption within a Squadron or Unit. Consumption of alcohol within a group, squadron or unit must follow the guidance in **Chapter 3**. **(T-2)**. Alcoholic beverage consumption within a group, squadron or unit may be considered for approval, in a space approved pursuant to **paragraph 4.2**, on a limited basis.

4.3.1. Group and other equivalent unit commanders may authorize the consumption of alcohol for Airmen and Guardians during unit events as follows:

4.3.1.1. Consumption of alcohol should be limited to unit heritage rooms and Force Support facilities.

4.3.1.2. Unit events where alcohol may be consumed by Airmen and Guardians may not be approved more frequently than a once-weekly basis. **(T-3)**.

4.3.1.3. Consumption of alcohol shall only occur after the conclusion of official duties. **(T-3)**. Consideration should be given to separating (e.g.., by time, location, and announcement) official mission debriefs from such celebratory or informal discussion events, where appropriate.

4.3.1.4. Unit events where alcohol consumption is permitted should be open for attendance by all unit members not otherwise on duty.

4.3.1.5. Prior to holding unit events where alcoholic beverages will be consumed, a safe transportation plan is approved by the unit commander and in place for the event. **(T-3)**.

4.3.2. In addition to significant unit events enumerated in **paragraph 3.1.3**, group and other equivalent unit commanders may authorize the consumption of alcohol for Airmen, Guardians, and their adult guests during unit-affiliated social events. The allowable drinking age for adult guests cannot be lower than 21 years of age within the United States.

4.3.2.1. Such unit affiliated social events include but are not limited to: hail and farewell recognitions; promotion and retirement celebrations; final-flight celebrations; group, squadron, or unit heritage events; anniversary celebrations; family day celebrations; and unit picnics.

4.3.2.2. Other functions or social events, of significantly different nature, may be approved by the installation commander upon request if the event is determined to be in the best interest of the DAF and the installation's mission. These exceptional requests must have installation commander written approval. **(T-3)**.

4.3.2.3. The requestor (e.g.., squadron or unit commander, civilian leader, or equivalent authority) must include the following for group or installation commander consideration:

4.3.2.3.1. A plan for how alcoholic beverages will not be consumed by, available, or provided to individuals under the legal drinking age of local laws. **(T-3)**.

4.3.2.3.2. Confirmation that alternative non-alcoholic beverages will be offered. **(T-3)**.

4.3.2.3.3. Date(s) of the event and the time alcohol is available. Having consecutive multi-day unit events featuring alcohol is not authorized. **(T-3)**.

4.3.2.3.4. A safe transportation plan for Airmen, Guardians, and their adult guests who may consume alcoholic beverages while attending the approved social function. The allowable drinking age for adult guests cannot be lower than 21 years of age within the United States.

4.3.2.3.5. If Force Support or contracted servers are utilized, then confirmation that such servers have completed Dram Shop Liability training. This training must be documented and managed by unit training manager. **(T-3)**.

4.3.2.3.6. Confirmation that mandated annual SAPR training and education for service members and DoD civilians was completed. **(T-3)**. Refer to DoDI 6495.02, Vol 1, Enclosure 10, sections 1 and 2.

4.3.2.3.7. Why the proposed event is in the best interest of the DAF installation mission.

4.3.2.3.8. An explanation of how alcohol will be deglamorized at the event. Refer to **paragraph 3.7**.

4.3.3. Develop and submit a safe transportation plan for Airmen, Guardians, and their adult guests who may consume alcoholic beverages while attending the approved function. The allowable drinking age for adult guests cannot be lower than 21 years of age within the United States.

4.3.4. Date(s) of the event and the time alcohol is available. Having consecutive multi-day events featuring alcohol is not authorized. **(T-3)**. Designating an entire building as authorized for consumption of alcohol, when multiple units share the building is not authorized. **(T-3)**.

4.3.5. Why the proposed event is in the best interest of the DAF and installation mission.

4.4. Selling and Dispensing Alcoholic Beverages – Squadron or Unit Location. When approving a request to serve and consume alcoholic beverages in on-installation areas (not designated for this purpose) the installation commander should require the alcoholic beverages be sold and dispensed only by an authorized Force Support or AAFES activity. The use of breathalyzers by hosting squadron or unit is prohibited. **(T-3)**. Refer to **paragraph 3.11**.

4.5. Vending Machines. Do not use vending machines to sell alcoholic beverages in the United States, its territories, or possessions. **(T-0)**.

4.5.1. Outside the United States, its territories and possessions, installation commanders may approve vending machine sales of beer in transient quarters, dormitories and dining facilities for on-premises consumption.

4.5.2. AAFES operates their own overseas vending machine program. An installation supplement must prescribe the following minimum controls for facilities with vending machines:

4.5.2.1. Hours of operation that comply with mission requirements. **(T-0)**.

4.5.2.2. Supervision of machines during operating hours. **(T-0)**.

4.5.2.3. Authorized use of the machines. **(T-0)**.

4.5.2.4. Safeguarding of machines during non-operating hours. **(T-0)**.

4.5. (39ABW) Use of vending machines to sell alcoholic beverages is prohibited.

4.6. Private Organizations. Private Organizations cannot sell or serve alcoholic beverages on DAF installations. **(T-3)**.

4.6.1. At the discretion of the installation commander, Force Support programs may secure the aid of volunteers or persons providing gratuitous services to assist in the sale of Force Support procured alcoholic beverages. Force Support programs may also enter into contractual agreements with spouses' clubs or other private organizations associated with military units or other on-installation private organizations, under which the private organization provides qualified personnel to assist the Force Support program in selling alcoholic beverages at Force Support events in exchange for a fee. Units will not require Airmen and Guardians to participate in the event. **(T-3)**. This arrangement may be used during family day events, Air Force or Space Force open houses and other community relations. All personnel assisting the Force Support program to sell alcoholic beverages at such events will receive appropriate training. **(T-3)**. Refer to paragraphs **3.1.4 and 3.5**.

4.6.2. **Exception:** Alcoholic beverages may be consumed and shared among adult members of private organizations (and their adult guests) in potluck fashion in locations where the Force Support Squadron does not sell alcoholic beverages at private organization social (non-business) events. The allowable drinking age for adult guests cannot be lower than 21 years of age within the United States.

4.7. Department of the Air Force Sponsored Aircraft. Authorized distinguished visitors and their adult guests may consume alcoholic beverages on DAF sponsored aircraft. The allowable drinking age for adult guests cannot be lower than 21 years of age within the United States. Submit a log to AFSVC for headquarters oversight. If alcoholic beverages are sold, the Force Support unit must create a special nonappropriated fund instrumentality to manage the funds **(T-3)**. Refer to Air Force Manual (AFMAN) 34-201, *Use of Nonappropriated Funds (NAFs)*.

4.8. Unauthorized Beverages.

4.8.1. Personal supplies of alcoholic beverages are not authorized in government facilities or on the grounds of Force Support programs selling or serving alcohol. **(T-3)**.

4.8.2. The sale of pre-mixed and packaged alcoholic energy drinks in Force Support activities is prohibited. **(T-3)**.

4.9. Food 2.0 and other Concessionaire Contracts.

4.9.1. The contractor is required and responsible for executing their beverage program in accordance with this instruction. **(T-3)**. Moreover, contractors are solely responsible for ensuring their operations are in full compliance with alcohol guidelines and regulations associated with the maintenance of nonappropriated fund instrumentalities or contractor's alcohol license at each DAF installation.

4.9.2. Any agreement entered with a contractor under a concessionaire contract must provide remuneration to the Force Support program. **(T-3)**.

4.9.3. The Food 2.0 contractor is required to follow registration and taxation policy as detailed in **paragraph 3.10**.

4.9.4. Contractor employees must have all training as detailed in **paragraph 3.5**. Upon a Force Support program request, the contractor shall provide proof of relevant employees' training and certification.

Chapter 5

SELLING ALCOHOLIC BEVERAGES FOR OFF-PREMISES CONSUMPTION

5.1. Off-Premises Alcohol Sales. AAFES is designated as the primary manager of packaged alcoholic beverage (Class Six) stores and the prime wholesaler of alcoholic beverages. Refer to AFI 34-203(I).

5.2. Non-Compete Force Support Programs. Force Support units and other DAF programs must not compete with AAFES to sell packaged alcoholic beverages with the exception of the following situations: **(T-0)**.

5.2.1. Lodging as provided in **paragraph 4.1.2**.

5.2.2. When approved by the installation commander, Force Support programs may sell beer, wine coolers, and other commercially packaged alcoholic beverages with less than seven percent alcoholic content by volume for off-premises consumption but should restrict these sales to time periods when AAFES operated retail outlets on the installation are closed. Force Support programs must not offer packaged alcohol for lower prices than AAFES charges for the same item. **(T-3)**.

5.2.2. **(39ABW)** Force Support programs on Incirlik Air Base may sell the permissible commercial alcoholic beverages for off-premise consumption.

5.2.3. Packaged beer or wine sales, that Force Support offers as part of a catering contract or takeout food and beverage operation, are exempt from this restriction. Takeout operations normally can sell no more than 12-pack containers and similarly packaged products to include keg beer.

5.2.4. Force Support programs may sell bottled wines and champagnes listed on the dining room wine list for off-premises consumption under these conditions:

5.2.4.1. Force Support programs may not set up rooms separate from the dining room to display or sell for off-premises consumption.

5.2.4.2. Force Support programs will ensure that dining room list prices comply with the pricing policy detailed in this instruction. **(T-3)**. Refer to **paragraph 5.2**.

5.2.5. Force Support programs and Class Six outlets must ensure that package alcohol sales are made only to patrons authorized to use the Force Support programs or Class Six store. **(T-0)**. Refer to **paragraph 5.4**.

5.2.6. Authorized DAF alcohol resale stores selling alcohol for off-premises consumption must inform patrons of the maximum quantities that an individual may legally transport into or through the state, district, territory, or country where the installation-of-purchase is located. **(T-3)**.

5.3. Establishing Class Six Outlets. In the United States, installations may operate Class Six outlets when approved by the Secretary of the Air Force. AFI 34-211(I) contains procedures for establishing a Class Six store. In foreign areas overseas, installations shall operate Class Six outlets where there is no contradictory status-of-forces or other country-to-country or local government agreement. **(T-0)**. AFSVC commander, with Major Command or Field Command concurrence, approves such operations if requested by AAFES.

5.4. Authorized Patronage. Inter-service publication AFI 34-211(I) contains AAFES Class Six patronage restrictions and identification procedures. Authorized patronage in overseas areas must comply with the provisions of the status-of-forces or other country-to-country agreement. **(T-0)**.

5.5. Controlling Sales. Authorized patrons will not sell nor exchange packaged alcoholic beverages to unauthorized personnel or for purposes that violate federal, state or local laws, or status-of-forces or other country-to-country agreements. **(T-0)**.

5.6. Pricing. Force Support programs shall ensure their prices for packaged alcoholic beverages are not lower than those charged by AAFES and are substantially uniform with other military service outlets in the same geographic area. **(T-3)**.

5.7. Wholesale Sales. AAFES is the prime wholesaler of alcoholic beverages on DAF installations. **(T-0)**. AAFES may provide all requested alcoholic beverage products to authorized Force Support and non-appropriated fund supported installation activities. If AAFES has stock shortages, activities selling alcoholic beverages as part of a bar/food menu should have priority.

5.7.1. AAFES sets wholesale prices based on the landed cost. Landed cost includes the purchase price adjusted for vendor and invoice discounts, plus costs incurred to bring goods to the point of sale. AAFES assesses no additional transportation, warehousing distribution or handling charges and other costs up to the destination. AAFES should consult with the AFSVC commander if exceptional conditions (e.g., national disasters, transportation strikes) arise that affect wholesale prices.

5.7.2. Force Support programs and other nonappropriated fund supported activities may purchase alcoholic beverages from sources other than AAFES, when more competitive prices exist from a commercial supplier.

5.8. Labeling Packaged Alcoholic Beverages. Title 27 United States Code (USC), Section 213, *Alcoholic Beverages Labeling Act of 1988*, requires all packaged containers of alcoholic beverages for resale on military installations bear this statement: "GOVERNMENT WARNING: (1) According to the Surgeon General, women should not drink alcoholic beverages during pregnancy because of the risk of birth defects. (2) Consumption of alcoholic beverages impairs your ability to drive a car or operate machinery and may cause health problems." **(T-0)**. This requirement also applies to foreign packaged beverages that DAF activities serve or sell overseas. The selling activity's manager must label all beverages that the producer does not label. **(T-0)**. The labels must follow these labeling requirements:

5.8.1. Design all labels to make the health warning statement readily legible under ordinary conditions on a contrasting background. **(T-0)**.

5.8.2. Containers of 237 milliliters (8 ounces) or less: must be labeled with 1 millimeter (0.04 inches) sized lettering. **(T-0)**.

5.8.3. Containers of more than 237 milliliters (8 ounces): must be labeled with 2 millimeters (0.08 inches) sized lettering. **(T-0)**.

5.8.4. Affix labels on the container so they cannot be removed without thorough application of water or other solvents. **(T-0)**.

ALEX WAGNER
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(39ABW)

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Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

27 USC § 213, *Alcoholic Beverages Labeling Act of 1988*, 18 November 1988

DoDI 1010.04, *Problematic Substance Use by DoD Personnel*, 20 February 2014

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Prescribed Forms

None

Adopted Forms

DAF Form 847, *Recommendation for Change of Publication*

Abbreviations and Acronyms

AAFES—Army and Air Force Exchange Services

(Added-39ABW) AAFES—Army Air Force Exchange Service

AF—Air Force

AFI—Air Force Instruction

AFMAN—Air Force Manual

(Added-39ABW) AFSC—Air Force Specialty Code

AFSVC—Air Force Services Center

ANG—Air National Guard

DAF—Department of the Air Force

DAFI—Department of the Air Force Instruction

DAFMAN—Department of the Air Force Manual

DAFPD—Department of the Air Force Policy Directive

DeCA—Defense Commissary Agency

DoD—Department of Defense

DoDI—Department of Defense Instruction

MWR—Morale, Welfare and Recreation

NAF—Nonappropriated Funds

NAFI—Nonappropriated Fund Instrumentality

OPR—Office of Primary Responsibility

SAPR—Sexual Assault Prevention and Response

UCMJ—Uniform Code of Military Justice

US—United States

USC—United States Code

VPI—Violence Prevention Integrators

Office Symbols

AF/A1—Air Force Deputy Chief of Staff, Manpower and Personnel

AF/A1S—Headquarters Air Force ServicesAF/A1SO—Air Force Services Operations Division

AF/RE—Chief of Air Force Reserve

AFIMSC/JA—Air Force Installation and Mission Support Center, Services Law Division

NGB/CF—Director of the Air National Guard

SAF/MR—Assistant Secretary of the Air Force, Manpower and Reserve Affairs

SF/S1—Space Force Deputy Chief of Space Operations for Human Capital

Terms

Adult—Personnel 18 to 21 years old are adults if so defined by the law of the state, territory, possession, or foreign country where the installation is located. If a state, territory, possession, or foreign country prohibits alcoholic beverages or has no prescribed drinking age, an adult is a person 18 years old or older.

Alcoholic Beverages—Potable beverages containing any amount of ethyl alcohol (e.g., beer, wine, and distilled spirits)

Civilian Welfare Fund—A fund established to provide adequate morale, welfare, and recreation programs, services and facilities for the Federal civilian workforce.

Class Six Store or Annex—The building or space within a building that serves as the main or supplementary point-of-sale for packaged (off-the-shelf) alcoholic beverages for off-premises consumption.

Container—The innermost sealed container, regardless of the packaging material, in which the bottler places an alcoholic beverage for commercial sale.

Dram Shop Theory—A theory of legal liability which imposes liability on servers of alcoholic beverages (facility owner, operator, or employee) for serving alcoholic beverages to persons who cause injuries or damages because of their intoxication.

Heritage Rooms—A location within a unit that brings personnel and families together to promote esprit de corps. These rooms are constant reminders of the Air Force and units past. They often include unit decorations and heraldry items; are not allowed to have commercial sponsorship; and are used for ceremonial and unit social events.

Minor—An individual who does not meet the minimum age requirements for lawfully consuming alcohol.

Name Brand Fast Food Outlet—A fast food establishment easily identifiable as a part of an off-installation fast-food chain.

Nonalcoholic Beverage—A beverage containing no alcohol.

Nonappropriated Fund Instrumentality—An integral DoD organization and fiscal entity that performs a governmental function and enjoys the legal status of an instrumentality of the US. NAFIs act in their own name to provide or assist other DoD organizations in providing Air Force Services programs for military personnel and authorized civilians.

Powdered Alcohol—Dehydrated alcohol that when reconstituted with water turns into vodka, rum, or another spirit.

Routine—Standard practice or regular occurrence.

Social hour—Designated period in which alcoholic beverages are offered at a reduced price.